

		The moving party to give notice.
5	N.B.S. Diamonds Inc. v. Lugano Diamonds & Jewelry Inc.	Plaintiff N.B.S Diamonds, Inc. dba Scarselli Diamonds' motion for leave to file a second amended complaint is CONTINUED to January 28, 2027, at 1:30 p.m. in this department. Leave to amend should be granted liberally to accomplish substantial justice for both parties. (Code Civ. Proc., § 473, subd. (a); <i>Hirsa v. Superior Court</i> (1981) 118 Cal.App.3d 486, 488-489 ("<i>Hirsa</i>").) "If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend...." (<i>Morgan v. Sup. Ct.</i> (1959) 172 Cal.App.2d 527, 530.) Prejudice includes "delay in trial, loss of critical evidence, or added costs of preparation." (<i>Solit v. Tokai Bank, Ltd. New York Branch</i> (1999) 68 Cal.App.4th 1435, 1448.) "The power to permit amendments is interpreted very liberally as long as the plaintiff does not attempt to state facts which give rise to a wholly distinct and different legal obligation against the defendant." (<i>Herrera v. Superior Court</i> (1984) 158 Cal.App.3d 255, 259.) "Allowing the filing of [] an amendment is in furtherance of justice and in keeping with the fundamental policy of our courts that cases should be decided on their merits." (<i>Hirsa, supra</i>, at p.490.) It is "an abuse of discretion to deny leave to amend where the opposing party was not misled or prejudiced by the amendment." (<i>Kittredge Sports Co. v. Superior Court</i> (1989) 213 Cal.App.3d 1045, 1048.) Under California Rules of Court Rule 3.1324(a), a motion to amend a pleading shall (1) include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments; (2) state what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph and line number, the deleted allegations are located; and (3) state what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located. Under California Rule of Court Rule 3.1324(b), a separate declaration must accompany the motion and must specify (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier. Here, Plaintiff has substantially complied with the requirements for leave to amend under Rule 3.1324. However, Plaintiff originally filed the motion on January 21, 2026, seeking leave to file the proposed second amended complaint attached as Exhibit 1 to ROA # 83. Since then, however, Plaintiff has obtained relief from the automatic stay against Defendant Lugano Diamonds & Jewelry, Inc. On June 18, 2026, therefore, Plaintiff filed a supplemental declaration for the motion, asking the court to, instead, grant Plaintiff leave to file a revised proposed second amended complaint, which is attached as Exhibit A to ROA #107. The June 18, 2026 declaration, however, fails to give Defendants sufficient notice of the revised relief that Plaintiff seeks. For this reason, to ensure due process, the court continues the hearing to January 28, 2027, at 1:30 p.m. in this department. Plaintiff is ordered to serve Defendants an amended notice of Plaintiff's revised request in a